PARTY WITHOUT ATTORNEY OR ATTORNEY	STATE BAR NUMBER:	FOR COURT USE ONLY
NAME:		
FIRM NAME:		
STREET ADDRESS:		
CITY:	STATE: ZIP CODE:	
TELEPHONE NO.:	FAX NO.:	
EMAIL ADDRESS:		
ATTORNEY FOR *(name)*:		
SUPERIOR COURT OF CALIFORNIA, COUNTY OF		
STREET ADDRESS:		
MAILING ADDRESS:		
CITY AND ZIP CODE:		
BRANCH NAME:		
PETITIONER:		
RESPONDENT:		
OTHER PARENT/PARTY:		
STIPULATION AND ORDER FOR CUSTODY AND/OR VISITATION (PARENTING TIME) ☐ **MODIFICATION**		CASE NUMBER:

Notice: If there are allegations or findings of abuse, the judge may not enter an order based on a stipulation until you have a hearing.

The parties signing this stipulation agree that:

1. This court has jurisdiction over the minor children because California is the children's home state.
2. The habitual residence of the children is the United States of America.

In addition, the parties agree that *(check item 3 or 4)*:

3. ☐ The attached agreement, dated *(specify)*: and consisting of *(number)*: pages is their agreement for custody and/or visitation (parenting time).
4. ☐ The attached forms are their agreement for custody and/or visitation (parenting time):
   ☐ FL-341 ☐ FL-341(A) ☐ FL-341(B) ☐ FL-341(C) ☐ FL-341(D) ☐ FL-341(E)

The parties further agree that *(check all that apply)*:

5. a. ☐ Their agreement is in best interest of their child or children and they ask that it be made the order of the court.
   b. ☐ (1) The case involves allegations of a history of abuse or substance abuse by *(check all that apply)*:
   (a) ☐ Petitioner ☐ Respondent ☐ Other parent/party is (or are) alleged to have a history of abuse against any of the following persons: a child, the other parent, their current spouse, or the person they live with or are dating or engaged to.
   (b) ☐ Petitioner ☐ Respondent ☐ Other parent/party is (or are) alleged to have the habitual or continual illegal use of controlled substances, or the habitual or continual abuse of alcohol, or the habitual or continual abuse of prescribed controlled substances.
   (2) Even though there are allegations specified above, the parties agree that the stipulation for child custody or unsupervised visitation (parenting time) is in the best interests of the child and is specific as to time, day, place, and manner of transfer (exchange) of the child, as Family Code sections 3011(a)(5)(B) and 6323(c) require.
6. **The parties acknowledge they were advised that any violation of this order may result in civil or criminal penalties, or both.**

Each party declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date:

Type or Print Name

▶ Signature of Petitioner

Date:

Type or Print Name

▶ Signature of Respondent

Date:

Type or Print Name

▶ Signature of Attorney for Petitioner

Date:

Type or Print Name

▶ Signature of Attorney for Respondent

PETITIONER: RESPONDENT: OTHER PARENT/PARTY:	CASE NUMBER:

Date:

Type or Print Name

Signature of Other Parent/Party

Date:

Type or Print Name

Signature of Attorney for Other Parent/Party

FINDINGS AND ORDERS

THE COURT FINDS:

1. This court has jurisdiction over the minor children because California is the children's home state.
2. The habitual residence of the children is the United States of America.
3. The parties have been advised that any violation of this order may result in civil or criminal penalties, or both.
4. The court finds that this order is in the best interests of the child or children listed in the parties' agreement.
5. ☐ Even though there are allegations in this case of a history of abuse or substance abuse by a party or parties, the court orders sole custody, joint custody, or unsupervised visitation (parenting time) to a party or parties with an alleged history of abuse or substance abuse, as provided in the parties' stipulation.
   a. As required by Family Code section 3011(a)(5)(A), the court's reasons for making the orders *(check all that apply):*
      (1) ☐ Are in writing and filed separately. (Form FL-351 may be used for this purpose.)
      (2) ☐ Were recorded as follows *(specify):* ☐ In a minute order ☐ By a court reporter ☐ Other *(specify):*
   b. The court finds that the order is in the best interests of the child and is specific as to time, day, place, and manner of transfer (exchange) of the child, as Family Code sections 3011(a)(5)(A) and 6323(c) require.
6. The court adopts the parties' agreement regarding child custody and/or visitation (parenting time) as the order of the court, as specified in the attached:
   ☐ Document dated *(specify):* and consisting of *(number):* pages or ☐ forms:
   ☐ Form FL-341 ☐ Form FL-341(A) ☐ Form FL-341(B) ☐ Form FL-341(C) ☐ Form FL-341(D) ☐ Form FL-341(E)
7. ☐ Other orders:

Date:

Judicial Officer

Stipulations and Family Code section 3044

Where past abuse has been found or alleged, the court must not sign a stipulation in which the parties state that Family Code section 3044 does not apply. When there has been a finding of domestic violence in the last five years, the court must not sign a stipulation in which the parties agree that the presumptions have been rebutted. The court must independently determine the best interest of the child in these cases.

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